

BREYER, J., dissenting

ons] facility alleges a constitutional deprivation, he may bring a *Bivens* claim against the offending individual officer, subject to the defense of qualified immunity.” *Malesko*, *supra*, at 72; see also *Farmer v. Brennan*, 511 U. S. 825, 832 (1994) (*Bivens* case about prisoner abuse). The claims in this suit would seem to fill the *Bivens*’ bill. See *Sell v. United States*, 539 U. S. 166, 193 (2003) (Scalia, J., dissenting) (“[A] [*Bivens*] action . . . is available to federal pretrial detainees challenging the conditions of their confinement”).

It is true that the plaintiffs bring their “deliberate indifference” claim against Warden Hasty under the Fifth Amendment’s Due Process Clause, not the Eighth Amendment’s Cruel and Unusual Punishments Clause, as in *Carlson*. But that is because the latter applies to convicted criminals while the former applies to pretrial and immigration detainees. Where the harm is the same, where this Court has held that both the Fifth and Eighth Amendments give rise to *Bivens*’ remedies, and where the only difference in constitutional scope consists of a circumstance (the absence of a conviction) that makes the violation here worse, it cannot be maintained that the difference between the use of the two Amendments is “fundamental.” See *City of Revere v. Massachusetts Gen. Hospital*, 463 U. S. 239, 244 (1983) (“due process rights” of an unconvicted person “are at least as great as the Eighth Amendment protections available to a convicted prisoner”); *Kingsley v. Hendrickson*, 576 U. S. 389, 400 (2015) (“pretrial detainees (unlike convicted prisoners) cannot be punished at all”); *Zadvydas v. Davis*, 533 U. S. 678, 721 (2001) (KENNEDY, J., dissenting) (detention “incident to removal . . . cannot be justified as punishment nor can the confinement or its conditions be designed in order to punish”). See also *Bistriani v. Levi*, 696 F. 3d 352, 372 (CA3 2012) (permitting *Bivens* action brought by detainee in administrative segregation); *Thomas v. Ashcroft*, 470 F. 3d 491, 493, 496–497 (CA2 2006) (detainee alleging failure to provide adequate medical care); *Magluta v. Samples*, 375 F. 3d 1269, 1271, 1275–1276 (CA11 2004) (de-